

**CHAPTER lxxxii.**

An Act to confer additional powers upon the Midland Railway Company for the construction of works and the acquisition of lands and for other purposes.

A.D. 1912.

[7th August 1912.]

WHEREAS it is expedient that the Midland Railway Company (in this Act called "the Company") should be empowered to construct and maintain the railways and other works and to exercise the other powers in this Act mentioned and also to acquire retain hold and use lands for the purposes of this Act and for extending their station siding warehouse coal-wharf depôt mineral goods and other accommodation and for other purposes connected with their undertaking:

And whereas plans and sections showing the lines and levels of the railways and other works by this Act authorised and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace for the several counties and riding within which the said railways and other works will be made or the said lands are situate and those plans sections and books of reference are in this Act referred to as the deposited plans sections and books of reference respectively:

And whereas it is expedient that further powers should be conferred upon the Company and upon the Company and any other company jointly and upon any joint committee on which the Company is represented with respect to the sale lease or other disposal of lands acquired by or vested in the Company

A.D. 1912. either solely or jointly with any such other company or any such joint committee respectively which are not or eventually may not be required for the purposes for which they may have been so acquired:

And whereas it is expedient that the agreements respectively set forth in the Second Third and Fourth Schedules to this Act should be confirmed:

And whereas it is expedient that some of the powers and provisions of existing Acts relating to the Company should be amended and that further powers should be conferred upon the Company as provided by this Act:

And whereas it is expedient that the Company should be empowered to apply their funds for the purposes of this Act:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited for all purposes as the Midland Railway Act 1912.

Incorporation of general Acts. 2. The following Acts and [parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts:

The Railways Clauses Consolidation Act 1845:

Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863.

Interpretation. 3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

“The railways” means the railways by this Act authorised.

Protection of gas and water mains of local authorities. 4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if “local

authority" were mentioned in those sections in addition to A.D. 1912.
 "company" or "society" Provided that any penalties recovered
 under section 23 shall be appropriated to that fund of the local
 authority to which their revenues in respect of water or gas (as
 the case may be) are appropriated.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways hereinafter described with all proper approaches stations sidings works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company.

Power to
Company to
make rail-
ways.

The railways hereinbefore referred to and authorised by this Act are—

Three railways situate wholly in the county of Glamorgan to be called the Clydach Railways—

Railway No. 1 (1 mile 5 furlongs 4 chains in length) commencing in the parish of Llansamlet in the rural district of Swansea by a junction with the Company's Swansea Vale Railway from Swansea to Ynisygeinon Junction at a point 45 chains or thereabouts measured in a southerly direction along that railway from the centre of the bridge carrying Glais Road over the said Swansea Vale Railway and terminating in the parish of Rhyndwyclydach in the rural district of Pontardawe by a junction with Railway No. 3 at the point of commencement of that railway hereinafter described :

Railway No. 2 (1 furlong 6·35 chains in length) commencing in the said parish of Rhyndwyclydach by a junction with the Company's Morriston Branch Railway from Upper Bank to Glais Junction at a point $5\frac{1}{2}$ chains or thereabouts measured along that railway in a north-easterly direction from the centre of the footbridge at Cwm Clydach Station thereon and terminating in the said parish of Llansamlet by a junction with Railway No. 1 at a point thereon 12 chains or thereabouts measured in a northerly

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direction from a point on the said Morriston Branch Railway 12 chains or thereabouts measured from the centre of the said footbridge in an easterly direction along the said Morriston Branch Railway :

Railway No. 3 (1 furlong 6·28 chains in length) situate wholly in the said parish of Rhyndwyclydach commencing by a junction with Railway No. 1 at a point half a chain or thereabouts north-east of the south-east corner of the field numbered 1750 on the 25-inch Ordnance map (2nd edition 1899) of that parish and terminating by a junction with the Cwm Clydach tramway at a point 3 chains or thereabouts west of the centre of the bridge over the Lower Clydach River at Upper Forge.

Rates and
charges for
railways.

6. The railways shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) be part of the railway of the Company as if the same had been part of the Midland Railway at the date of the passing of the Midland Railway Company (Rates and Charges) Order Confirmation Act 1891 and shall for all other purposes be part of the undertaking of the Company as authorised by the Midland Railway Consolidation Act 1844:

Provided always that for the purposes aforesaid the railways shall be deemed to have formed part of the Swansea Vale Railway from Swansea to Brynamman at the date of the passing of the said Act of 1891 :

Provided also that maximum fares to be charged by the Company for the conveyance of passengers upon the railways including every expense incidental to such conveyance shall not exceed the following (that is to say):—

For every passenger conveyed in a first-class carriage threepence per mile;

For every passenger conveyed in a second-class carriage twopence per mile;

For every passenger conveyed in a third-class carriage one penny per mile;

For every passenger conveyed on the railways for a less distance than three miles the Company may charge as for three miles and every fraction of a mile beyond three miles or any greater number of miles shall be deemed a mile.

7. Every passenger travelling upon the railways may take with him his ordinary luggage not exceeding one hundred and fifty pounds in weight for first-class passengers one hundred and twenty pounds in weight for second-class passengers and one hundred pounds in weight for third-class passengers without any charge being made for the carriage thereof.

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Passengers' luggage.

8. In altering for the purposes of this Act the road next hereinafter mentioned the Company may make the same of any inclination not steeper than the inclination hereinafter mentioned in connection therewith (that is to say):—

Inclination of road.

No. on deposited Plans.	Parish.	Description of Road.	Intended Inclination.
RAILWAY No. 1.			
30	Llansamlet	Public	1 in 13 on the western side.

9. The Company may divert the roads and public footpaths referred to in the next following table in the manner shown upon the deposited plans and (so far as the same are shown thereon) the deposited sections and subject to the provisions of this Act may stop up and cause to be discontinued as a road or footpath so much of each existing road or footpath as will be rendered unnecessary by the new portion of road or footpath so shown on the said plans (that is to say):—

Power to divert roads and footpaths.

Railway.	Parish.	No. of Road or Footpath on Deposited Plans.
No. 1	Llansamlet	14.
Do.	Do.	18 and 21.
Do.	Do.	30.

10. Where this Act authorises the diversion of a road or footpath or the making of a new road or footpath and the stopping up of an existing road or footpath or any portion thereof such stopping up shall not take place until the new road or footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company and the road authority until two justices shall have certified that the new road or footpath has been completed to their satisfaction and is open for public use.

Stopping up roads and footpaths in case of diversion.

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Before applying to the justices for their certificate the Company shall give to the road authority seven days' notice in writing of their intention to apply for the same.

As from the completion of the new road or footpath to the satisfaction of the road authority or as from the date of the said certificate as the case may be all rights of way over or along the existing road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company:

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Provisions as to repair of roads and footpaths.

11. Subject to the provisions of this Act the new roads and footpaths and diversions of roads and footpaths to be made under the authority of this Act shall when made and completed be repaired and maintained by and at the expense of the same parties in the same manner and to the same extent as other roads and footpaths of a similar nature within the parish in which any such road or footpath will be situate are from time to time liable to be repaired or maintained.

Company not bound to maintain surface of roads &c. unless level permanently altered.

12. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over any railway by this Act authorised by a bridge or bridges or the immediate approaches thereto except so far as the level of such road public highway or approaches is permanently altered so as to increase the gradient.

Period for completion of railways.

13. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

14. If the Company fail within the period limited by this Act to complete the railways the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the uncompleted railway or railways is or are completed and opened for the public conveyance of passengers or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the uncompleted railway or railways.

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Imposing
penalty un-
less railways
opened.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in the third section of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

15. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or railways in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act for the purposes of such railway or railways and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit.

Application
of penalty.

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If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Under-
pinning of
houses near
railways.

16. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of any railway by this Act authorised it may be necessary to underpin or otherwise strengthen the same Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company :
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require shall within seven days after the giving of such notice give a counter notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference

appointed at the instance of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the reference: A.D. 1912.

- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building:
- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or maintenance of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:

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(9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Limits of deviation of railways.

17. In constructing the railways and works in connection therewith the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels of the railways and works as shown on the deposited sections in accordance with the provisions of the Railways Clauses Consolidation Act 1845.

For protection of Swansea Gas Light Company.

18. The provisions of section 6 of the Midland Railway Act 1911 (For protection of Swansea Gas Light Company) shall so far as applicable extend and apply to the railways and works by this Act authorised as though such railways and works were part of the railways authorised by the said Act of 1911.

For protection of Swansea Corporation.

19. Notwithstanding anything in this Act contained or shown on the deposited plans and sections the following provisions for the protection of the mayor aldermen and burgesses of the county borough of Swansea (in this section called "the corporation") shall unless otherwise agreed in writing between the corporation and the Company apply and have effect (that is to say):—

(1) In constructing the bridge carrying Railway No. 1 by this Act authorised over the main road leading from Morriston to Pontardawe numbered on the deposited plans 18 in the parish of Rhyndwyclydach the Company shall carry out the work in such manner as not to interfere more than is reasonably necessary with the water mains or other works of the corporation laid in or under the said road:

(2) Any interference with the said water mains or other works which may be necessary shall be carried out under the superintendence of the borough engineer if the same be given and the Company shall give to the borough engineer seven days' notice of the commencement of the construction of the said bridge with a sketch showing the works proposed and shall repay to the corporation any loss injury damage cost or expense which they may sustain by reason of the construction use or maintenance of the said bridge or

the interference by the Company with the said water mains or the temporary stoppage of the water therein or otherwise including any additional expense to which the corporation may be put in maintaining the said water mains or other works by reason or in consequence of the construction or maintenance of the said Railway No. 1 : A.D. 1912.

- (3) If any difference shall arise between the Company and the corporation or their respective engineers under this section the same shall be determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject thereto in accordance with the provisions of the Arbitration Act 1889.

20. Notwithstanding anything shown on the deposited plans and sections the following provisions for the protection of the rural district council of Swansea (in this section referred to as "the council") shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):— For protection of rural district council of Swansea.

- (1) The bridge carrying the road leading from Glais to Morriston and numbered on the deposited plans 30 in the parish of Llansamlet over Railway No. 1 by this Act authorised and the approaches to such bridge shall have a clear width of not less than twenty-five feet measured at right angles to the centre line of the said road :
- (2) The gradient of the western approach to the said bridge shall not be steeper than 1 in 13 and the gradient of the eastern approach thereto shall not be steeper than 1 in 37 :
- (3) The substituted footpath to be constructed by the Company in lieu of the footpath leading from Sisters Pit Glais to Ynistanglwys and Ynistawe and numbered on the deposited plans 14 in the parish of Llansamlet shall be carried over the said Railway No. 1 by means of a footbridge not less than six feet wide constructed at the same level as the level of the land at the point at which the said substituted footpath will cross the boundary of the Company's property :

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- (4) The Company shall provide proper swing-gates stiles or other convenient means of passage to the reasonable satisfaction of the council where the said Railway No. 1 crosses any public rights of way within the district of the council:
- (5) Wherever the said Railway No. 1 is constructed over a sewer surface water culvert or electric cable of the council the Company shall provide to the reasonable satisfaction of the council proper and sufficient works for protecting such sewer surface water culvert or electric cable from injury and shall provide suitable means of access to such sewer surface water culvert or cable and the council shall at all times be entitled to access thereto in order to inspect repair maintain or renew the same and if at any time the council shall incur additional expense in connection with such repairing maintenance or renewal by reason of the existence of the said railway such additional expense shall be repaid to them by the Company:
- (6) Wherever it may be necessary to intercept or interfere with any sewer or drain of the council the Company shall before intercepting or interfering with such sewer or drain construct another sewer or drain to the reasonable satisfaction of the council and according to a plan to be approved by the council and such substituted sewer or drain shall be connected by the council at the expense of the Company with the existing sewer or drain which may be intercepted or interfered with in such manner as shall be approved by the council:
- (7) If at any time the council shall require to construct any sewer or drain or any gas water or electric main pipe tube or apparatus in any road or footpath (whether a public highway or not) over or under which the said Railway No. 1 is carried they shall be entitled at their own expense to construct the same together with all necessary or proper culverts works and conveniences Provided that all work to be executed by the council under this subsection shall be executed under the superintendence and to the reasonable satisfaction of the Company's engineer and in accordance with such plans sections and

specifications as shall be agreed between the council and the Company Provided that if for one month after the delivery of such plans sections and specifications the Company do not disapprove they shall be deemed to have approved thereof: A.D. 1912.

- (8) Any difference which may arise between the council and the Company under any of the provisions of this section or as to the mode of giving effect thereto shall be referred to the arbitration of and determined by an engineer or other fit person to be appointed (unless otherwise agreed) upon the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

21. For the protection of the Glamorgan County Council (in this section called "the county council") the following provisions notwithstanding anything to the contrary contained in this Act or shown on the deposited plans and sections shall unless otherwise agreed in writing between the Company and the county council apply and have effect (that is to say):— For protection of Glamorgan County Council.

- (1) The Company shall carry Railway No. 1 over the main road from Swansea to Pontardawe numbered on the deposited plans 18 in the parish of Rhyndwylydach by a flat girder bridge having a clear span of not less than thirty-six feet between the abutments measured on the square and a clear headway above the highest part of the surface of the roadway of not less than eighteen feet:
- (2) In constructing the said bridge the Company shall not alter the existing level of the road and the lines of the abutments of the bridge shall be such as shall be reasonably approved by the surveyor to the county council:
- (3) If and when requested by the county council so to do the Company shall erect close parapets or screen fences to the said bridge of not less than six feet in height above the level of the rails and extending for a distance of at least five feet on each side of the bridge beyond the face lines of the abutments of the same:

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(4) The said bridge shall so far as is reasonably practicable be constructed so as to prevent the dripping of water on the road or footpaths beneath :

(5) The Company shall permit the county council to fix in suitable positions on the said bridge attachments for carrying any electric wires or lines which may be required for traction purposes. Such attachments to be in all respects subject to the reasonable approval of the engineer of the Company and to be removed temporarily whenever necessary for the maintenance reconstruction alteration or painting of the said bridge the Company affording all necessary support for such wires :

(6)—(A) The Company shall at their own expense acquire and dedicate as part of the road such land situate under the said bridge and on either side thereof within the limits of the Company's railway fences as may be required for the purpose of enabling the road within such limits to be constructed of a width not less than the width of the road under the bridge as prescribed by this section :

(B) In the event of any further land acquired by the Company and situate beyond the limits of the Company's railway fences being required for the purpose of enabling the said road to be constructed of the width aforesaid the Company shall if so required by the county council sell to the county council and the county council may purchase such land and shall thereupon pay to the Company therefor in the case of land not covered by buildings a price calculated at the same rate per acre or part of an acre as the actual price paid for the same by the Company and in the case of land covered by buildings a price to be agreed between the Company and the county council or failing agreement to be settled by arbitration under this section :

(7) If any question or difference shall arise between the Company and the county council with respect to any matter under this section the same shall be determined by an arbitrator to be appointed failing agreement on the application of either party by the

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subject thereto the provisions of the Arbitration Act
1889 shall apply to any such arbitration.

22. For the protection of the Great Western Railway Company (in this section called "the Great Western Company") the following provisions shall unless otherwise agreed have effect (that is to say):— For protec-
tion of Great
Western
Railway
Company.

(1) The Company shall not enter upon take use or interfere with either temporarily or permanently any property of the Great Western Company including any lands which that company may acquire for the purposes of Railway No. 5 authorised by the Great Western Railway Act 1911 or works in connection therewith or acquire any easement or right in over or in any way affecting such property except only that the Company may purchase and take and the Great Western Company may and shall if so required by the Company sell and grant according to their estate and interest in and subject to all easements rights and covenants affecting the said property such an easement or right as shall be necessary for the purpose of constructing using and maintaining in accordance with the provisions of this section Railway No. 1 over and across the said property and the provisions of the Lands Clauses Acts with respect to lands shall extend and apply to such easement or right so far as such provisions are not inconsistent with this section as fully as if such easement or right were lands within the meaning of those Acts:

(2) The Company shall pay to the Great Western Company by way of purchase or compensation for the easements or rights to be acquired under the preceding subsection such an amount as may be agreed upon or in the event of difference as may be determined by arbitration under the provisions of the Lands Clauses Consolidation Act 1845 relating to the purchase of lands otherwise than by agreement and for the purpose of any such determination the acquisition of such easement or right shall be deemed to be a taking of lands within the meaning of section 6 of the Railways Clauses Consolidation Act 1845:

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- (3) Notwithstanding anything in this Act contained the Company shall not enter upon take or use any of the lands which the Great Western Company are authorised to purchase or acquire for the purposes of Railway No. 1 authorised by the Great Western Railway Act 1912 on the north-eastern side of the Clydach Tramway or acquire any easement or right in over or in any way affecting such lands except so far as may be necessary for the purposes of the construction of the junction of Railway No. 3 by this Act authorised with the Clydach Tramway and any diversion of that tramway which the Company may think fit for the improvement of the curves of the tramway at the point of junction but such diversion shall not be inconsistent with or prevent the diversion of the Clydach River as shown on the deposited plans for the said Railway No. 1 authorised by the Great Western Railway Act 1912:
- (4) The Company shall not enter upon or interfere with any property of the Great Western Company including the channel or feeder to the Swansea Canal hereinafter referred to or execute any works whatever over under across or otherwise affecting such property until the Company shall have delivered to the Great Western Company plans sections and drawings of such intended works and those plans sections and drawings shall have been approved in writing by the engineer of the Great Western Company or in the event of his unreasonably withholding his approval or failing for twenty-eight days after the delivery of the said plans sections and drawings to approve or disapprove the same until the same shall have been approved by an arbitrator to be appointed as hereinafter provided and all the intended works shall be executed by the Company at their sole expense in all things according to such approved plans sections and drawings and to the reasonable satisfaction and under the superintendence of the engineer of the Great Western Company:
- (5) In constructing Railway No. 1 where the same is intended to cross Railway No. 5 authorised by the Great Western Railway Act 1911 and the Swansea

Canal of the Great Western Company the Company shall not without the consent of the Great Western Company deviate laterally from the centre line shown on the deposited plans or within the limits of deviation of the said Railway No. 5 as shown on the deposited plans of that railway vertically downwards from the levels shown on the deposited sections: A.D. 1912.

- (6) The Company shall carry Railway No. 1 over the said railway and lands by means of a girder bridge of a single span of fifty-three feet on the square and with a clear headway throughout of not less than fifteen feet from the upper surface of the rails of the said Railway No. 5 as constructed or intended to be constructed by the Great Western Company to the underside of the girders of the said bridge:
- (7) The Company shall carry Railway No. 1 over the Swansea Canal by means of a bridge of sufficient width to span the waterway of the canal at the point of crossing and a space of six feet on the eastern side and ten feet on the western side of the said waterway and with a clear headway throughout of not less than eight feet from the weir level of the waterway of such canal to the underside of the girders of such bridge and the said bridge shall be provided with suitable ballast boards or parapets to protect the traffic passing along the canal and towpath and the abutments or piers of the said bridge shall be carried down to such a depth as will be sufficient to provide for a depth of water in the canal of not less than five feet below the weir level:
- (8) In constructing Railway No. 1 the Company shall provide and thereafter maintain the following culverts and other works:—
 - (A) A culvert having a clear span of not less than nine feet and a headway of not less than six feet over the aqueduct on the south-western side of the said canal and any necessary reconstruction or alteration of the said aqueduct;
 - (B) A culvert having a clear span of not less than nine feet and a headway of not less than

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six feet over the channel situate on the western side of the Lower Clydach River between Clydach Bridge and the Swansea Canal;

(c) A culvert having a clear span of not less than nine feet and a headway of not less than six feet over the canal feeder numbered on the deposited plans 33A in the parish of Rhyndwyclydach and the Company shall strengthen and support or divert through such culvert the pipe leading from the intake to the said feeder to the works belonging to Messieurs Players:

The side walls and foundations of the said culverts shall be carried down to such a depth below the bed of the said aqueduct channel and feeder as the engineer of the Great Western Company may reasonably require:

(9) The Company shall not interfere with the said feeder or the said intake or the overflow from the said feeder and shall construct and thereafter maintain any works which the engineer of the Great Western Company may reasonably require to protect the same during and after the completion of the said railway:

(10) All works over under or in any way affecting the railway canal and other works of the Great Western Company shall be effected in such a manner as not to endanger or affect the stability thereof or of the pitched slope on the north-western bank of the River Tawe between the pumping station of the Great Western Company and the south-eastern bank of the Lower Clydach River which protects the property of the Great Western Company and the Company shall bear any additional cost which the Great Western Company may reasonably incur in maintaining such slope by reason of the construction of the said works:

(11) Should it be necessary in constructing Railway No. 1 or in consequence of the construction thereof for the Great Western Company to alter or remove the telegraph or telephone posts or wires on or connected with their railway or canal or some of such posts or wires or to add to or alter any signals or signalling apparatus on the said railway or canal the Company

shall bear and on demand pay to the Great Western Company the reasonable expense of and connected with such alteration or addition or restoring the same to their former or placing them in different positions or substituting other telegraph or telephone posts or wires or signals therefor: A.D. 1912.

- (12) In constructing and maintaining Railway No. 1 the Company shall not without the consent of the Great Western Company alter the course or level of the said canal or the towing paths thereof or interfere with the intake in the River Tawe or obstruct the course or free flow or supply of the water in or to the canal or the pipes connecting the said intake with the Great Western Company's pumping station or the flow of water in or to such intake or pipes or in any manner impede the navigation on the said canal or the access thereto or to any wharf or wharves adjoining or near thereto or injure any of the banks or other works of the canal aqueduct channel or feeder or cause or permit any leakage or loss of water from the canal aqueduct channel or feeder:
- (13) The Company shall bear and on demand pay to the Great Western Company any additional expense which they may at any time reasonably incur in maintaining renewing or removing the machinery and plant in the pumping station of the Great Western Company situate on the south-eastern side of the Swansea Canal by reason of the construction of the said railway:
- (14) The Company shall bear and on demand pay to the Great Western Company the reasonable expense of the employment by them during the construction of Railway No. 1 of a sufficient number of inspectors signalmen or watchmen to be appointed by them for watching their railway canal and other works and the conduct of traffic thereon with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Company with reference thereto or otherwise:
- (15) Notwithstanding anything in this Act the Company shall from time to time be responsible for and make

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good to the Great Western Company all losses costs damages and expenses which may be occasioned to them or any of their works or property or to the traffic on their railway or canal or on the sidings and lines used by them or through any loss of water from the said canal aqueduct channel or feeder or any interference with the waterway or towing path thereof or to any company or person using the same or otherwise during and by reason of the execution renewal or repair by the Company of any works affecting the property of the Great Western Company or by reason of the failure of any of the intended works or of any act default or omission of the Company or of any persons in their employ or of their contractors or otherwise and the Company shall effectually indemnify and hold harmless the Great Western Company from all claims and demands upon or against them by reason of such execution renewal or failure and of any such act default or omission:

- (16) The Company shall at their sole expense at all times maintain the bridges culverts and other works by which Railway No. 1 shall be carried over or adjoining any property of the Great Western Company in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the Great Western Company and if and whenever the Company fail so to do after one month's notice from the Great Western Company for that purpose or in case of urgency without notice the Great Western Company may make and do in and upon as well the lands of the Company as their own lands all such works and things as the Great Western Company shall think requisite in that behalf for insuring such repair and the sum from time to time reasonably incurred in that behalf shall be repaid to them by the Company and in default of full repayment the amount due may be recovered with full costs by the Great Western Company from the Company in any court of competent jurisdiction:
- (17) If any subsidence shall occur by which the level of the bridges or culverts carrying Railway No. 1 over the property of the Great Western Company shall be lowered so that the headway prescribed by this section

or shown on the deposited sections as the case may be be not maintained then the Company shall at their own cost whenever called upon by the Great Western Company to do so raise or lift the bridges or culverts over the property of the Great Western Company to the height and level above ordnance datum at which they were originally constructed under the provisions of this Act:

- (18) If in the opinion of the Great Western Company or (in case of difference between them and the Company) in the opinion of the arbitrator to be appointed as hereinafter provided it shall be necessary for the Great Western Company to purchase or pay compensation for any minerals required to be left unworked—

(A) If the same have to be left unworked solely for the protection and safety of any works constructed under the powers of this Act the Company shall on demand pay to the Great Western Company all reasonable costs and expenses incurred by them in relation to any such purchase or payment of compensation; or

(B) If the same have to be left unworked for the protection and safety of any property of the Great Western Company as well as of the said works to be constructed under the powers of this Act the Company shall on demand pay to the Great Western Company a fair proportion of the reasonable costs and expenses incurred by them in relation to any such purchase or payment of compensation and the proportion of such costs and expenses payable by the Company shall in case of difference be determined by arbitration as hereinafter provided:

- (19) If the Great Western Company shall at any time hereafter be desirous of widening their railways or canal under Railway No. 1 the Company shall afford to the Great Western Company all reasonable facilities for the construction of such widening according to plans to be agreed between the respective principal engineers of the Great Western Company and the

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Company or in case of difference to be determined by arbitration as hereinafter provided :

- (20) If any dispute shall arise between the Great Western Company and the Company respecting the matters and provisions aforesaid or any of them such dispute shall (except as aforesaid) be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

For protec-
tion of Pon-
tardawe
Rural
District
Council.

23. For the protection of the Pontardawe Rural District Council (in this section called "the council") the following provisions shall unless otherwise agreed on in writing between the council and the Company have effect (that is to say):—

- (1) Where Railway No. 1 and Railway No. 2 pass over the lands numbered on the deposited plans 37 and 39 in the parish of Llansamlet (in this section called "the said parish") the same shall be carried for a distance of not more than one hundred and twelve yards southwards from the centre of the southern abutment of the bridge belonging to the council over the River Tawe by means of an embankment :
- (2) Where Railway No. 1 passes over the lands numbered on the deposited plans 36 37 and 38 in the said parish and over the remainder of the said lands numbered 39 from the termination of the said embankment to the southern boundary of the said land numbered 37 and where Railway No. 2 passes over the said lands numbered 37 and 39 to the western boundary of the said lands numbered 39 the same shall be carried by means of viaducts not more than thirty-two feet in width respectively each having arches of a span of not less than forty feet :
- (3) The Company shall only purchase and take so much of the lands numbered on the deposited plans 36 37 38 and 39 in the said parish as may be necessary for the construction of the proposed embankment and for the site of the foundations of the piers and abutments for the intended viaducts but the Company may acquire an easement or right of constructing

and maintaining the arches of the proposed viaducts over the said lands : A.D. 1912.

- (4) The Company shall at their expense and to the reasonable satisfaction of the council make good and as effective as they now are all or any of the works connected with the sewerage farm of the council which may be interfered with owing to the construction of Railway No. 1 and the Company shall not object to the construction by the council on any of the said lands of any tanks or filters near to or adjoining the existing railways of the Company which the council may in their absolute discretion think necessary :
- (5) The Company shall carry Railway No. 1 over the accommodation road (on the property numbered on the deposited plans 31 in the said parish) leading to the sewage works of the council by a bridge having a clear span between the abutments thereof equal to the width of the said road or of fifteen feet between the abutments measured square with the said road whichever shall be the greater and having a clear headway of not less than fourteen feet :
- (6) Wherever the railways are constructed over a sewer of the council the Company shall provide to the reasonable satisfaction of the council proper and sufficient works for protecting such sewer from injury and shall provide suitable means of access to such sewer and the council shall at all times be entitled to access thereto in order to inspect repair maintain or renew the same and if at any time the council shall incur additional expense in connection with such repairing maintenance or renewal by reason of the existence of the railways such additional expense shall be repaid to them by the Company :
- (7) Wherever it may be necessary to intercept or interfere with any sewer or drain of the council the Company shall before intercepting or interfering with such sewer or drain construct another sewer or drain to the reasonable satisfaction of the council and according to a plan to be reasonably approved by the council and such substituted sewer or drain shall be connected by the council at the expense of the

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Company with the existing sewer or drain which may be intercepted or interfered with in such manner as shall be reasonably approved by the council:

- (8) If at any time the council shall require to construct any sewer or any gas water or electric main pipe tube or apparatus in any road or footpath (whether a public highway, or not) over or under which the railways are carried the council shall be entitled at their own expense to construct the same together with all necessary or proper culverts works and conveniences:
- (9) The council shall be entitled at their own expense to carry a sewer across or under Railway No. 3 on the property numbered on the deposited plans 48 in the parish of Rhyndwylydach:
- (10) All works to be executed by the council under either of the last two preceding subsections of this section shall be executed under the superintendence and to the reasonable satisfaction of the Company's engineer and in accordance with such plans sections and specifications as shall be agreed between the council and the Company or failing agreement for one month after the delivery of such plans sections and specifications to the Company as shall be determined by arbitration as hereinafter provided:
- (11) Any difference which may arise between the council and the Company under any of the provisions of this section or as to the mode of giving effect thereto or as to the amount of compensation payable by the Company to the council shall be referred to the arbitration of and determined by an engineer or other fit person to be appointed (unless otherwise agreed) upon the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Power to
Company to
acquire lands
for general
purposes.

24. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate for the purposes of extending their stations sidings warehouses engine-sheds workshops coal wharves depôts mineral goods and other works and conveniences for the accommodation of their traffic

and for providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company and for other purposes connected with their undertaking all or any of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say):—

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In the west riding of the county of York—

Lands in the parish city and county borough of Sheffield on the north-west side of and adjoining the Company's railway from Chesterfield to Sheffield between points 16 chains or thereabouts and 23 chains or thereabouts north-east of the bridge carrying Abbey Lane over that railway:

In the county of Chester—

Lands in the parish of Cheadle in the urban district of Cheadle and Gatley on the south-west side of and near to and adjoining the Company's railway from New Mills to Heaton Mersey situate between the bridges respectively carrying the railways of the London and North Western Railway Company from Crewe to Manchester and from Stockport to Warrington over the Company's said railway:

In the county of Derby—

Lands in the parish and urban district of Alfreton on the north-west side of and adjoining the Company's railway from Pye Bridge to Mansfield between points 9 chains or thereabouts and 29 chains or thereabouts measured in a northerly direction from the junction of the said railway with the Company's Trent to Clay Cross Railway:

In the county of Warwick—

Lands in the respective parishes of Arrow and Oversley in the rural district of Alcester on the west side of and adjoining the Company's railway from Evesham to Redditch and lying to the north and south of the bridge carrying the said railway over the River Arrow;

Lands in the parish of Kingsbury in the rural district of Tamworth on the south-east side of and adjoining the Company's railway from Kingsbury to Water Orton between points 24 chains or thereabouts and 37 chains or thereabouts measured in a north-easterly direction

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from the bridge carrying the said railway over the public road from Marston to Whitacre Heath and certain other lands in the said parish on the north-west side of and adjoining the said railway and lying south-west of and adjoining the said bridge :

In the county of Nottingham—

Lands in the parish and urban district of Kirkby-in-Ashfield on the west side of and adjoining the Company's railway from Nottingham to Mansfield between points 14 chains or thereabouts and 39 chains or thereabouts measured in a southerly direction from the bridge carrying the public road from Kirkby Hardwick to East Kirkby over the said railway :

In the county of Bedford—

Lands in the parish and borough of Luton on the north-east side of and adjoining the Company's railway from London to Bedford and between Leagrave Road and Skefko Road ;

Lands in the parish of Turvey in the rural district of Bedford on the south side of and adjoining the Company's railway from Bedford to Northampton between points 23 chains or thereabouts and 32 chains or thereabouts measured in a westerly direction from the west face of the bridge carrying the private road from Astwood to Turvey over the said railway :

In the county of Hertford—

Lands in the parish of Saint Stephen in the rural district of Saint Albans and in the parish of Aldenham in the rural district of Watford on the east side of and adjoining the Company's railway from London to Bedford between points 13 chains or thereabouts and 50 chains or thereabouts measured in a north-easterly direction from the northern end of the Radlett Station thereon :

In the county of Middlesex—

Lands in the parish and urban district of Hendon on both sides of and adjoining and near to the Company's railway from London to Bedford between points 5 chains or thereabouts and 30 chains or thereabouts measured in a north-westerly direction from the north-western end of the Mill Hill Station thereon :

In the county of Worcester—

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Lands in the parish of Holy Cross Pershore in the rural district of Pershore on the east side of and adjoining the Company's railway from Birmingham to Gloucester and north and south of the junction of the Great Western Railway Company's railway from Worcester at Abbots Wood Junction with the said Birmingham to Gloucester Railway :

In the county of Brecknock—

Lands in the parish of Hay in the rural district of Hay on the north-west side of and adjoining the Company's railway from Hereford to Three Cocks between points 15 chains or thereabouts and 26 chains or thereabouts west of the bridge carrying the said railway over the road from Hay to The Warren.

25. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights of way over lands taken compulsorily.

26. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

27. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

28. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be

Owners may be required to sell parts only of certain properties.

A.D. 1912. — sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter in this section included in the term "the owner" and the said properties are hereinafter in this section referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto

the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that

A.D. 1912. any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

As to road at Hendon.

29. Nothing in this Act contained shall affect the rights (if any) exerciseable by the public over the road numbered on the deposited plans 12 in the parish of Hendon.

Confirming agreement with Great Northern Railway Company.

30. The agreement dated the tenth day of August one thousand nine hundred and eleven and made between the Company of the one part and the Great Northern Railway Company of the other part as set forth in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Confirming agreement with Midland and South Western Junction Railway Company.

31. The agreement dated the twenty-seventh day of February one thousand nine hundred and twelve and made between the Company of the one part and the Midland and South Western Junction Railway Company of the other part as set forth in the Third Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Confirming heads of agreement with corporation of Liverpool.

32. The heads of agreement between the Company and the lord mayor aldermen and citizens of the city of Liverpool dated the third day of January one thousand nine hundred and twelve as set forth in the Fourth Schedule to this Act are hereby confirmed and made binding upon the parties thereto.

Railways abutting but not communicating with streets not to be chargeable with private street expenses.

33. The Company shall be deemed not to be an owner or occupier for the purposes of section 150 of the Public Health Act 1875 in respect of any land acquired by the Company under the powers or for the purposes of this Act upon which any street as defined by the Public Health Acts and not being a highway repairable by the inhabitants at large shall wholly or partially front adjoin or abut and which shall at the time of the laying out of such street be used by the Company solely as a part of their lines of railway or sidings stations or works and shall have no direct communication with such street and the expenses incurred by any urban or rural authority under the powers of the said section which but for this provision the Company would be liable to pay shall be repaid to the urban or rural authority as the case may be by the owners of the

premises fronting adjoining or abutting on the said street other than the Company and in such proportions as shall be settled by the surveyor of the urban or rural authority as the case may be and in the event of the Company subsequently making a communication with such street they shall notwithstanding such repayment as last aforesaid pay to the urban or rural authority as the case may be the expenses which but for the foregoing provision the Company would in the first instance have been liable to pay and the urban or rural authority as the case may be shall divide among the owners for the time being other than the Company the amount so paid by the Company to the urban or rural authority as the case may be less the cost and expenses attendant upon such division in such proportion as shall be settled by the said surveyor whose decision shall be final and conclusive Provided that this section shall not apply to any street existing at the date of the passing of this Act.

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34. And whereas lands have from time to time been purchased or acquired by the Company but such lands are not immediately required for the purposes of the Company and it is expedient that further powers should be conferred upon the Company with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act with which that Act is incorporated the Company shall not be required to sell or dispose of any such lands or any lands acquired under the powers of this Act which may not be immediately required for the purposes of the Company but may retain hold or use or may lease or otherwise dispose of the same.

Power to
lease &c.
lands.

For the purposes of this section the expression "the Company" means and includes in addition to the Company any joint committee incorporated by Act of Parliament on which the Company may be represented and for the purposes of any land held or enjoyed by the Company jointly with any other company or companies means and includes the Company and such other company or companies.

35. The Company may apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Company
may apply
corporate
funds.

A.D. 1912.

Provision
as to general
Railway
Acts.

36. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Costs of Act.

37. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1912.

FIRST SCHEDULE.

Describing properties of which parts only are required to be taken by the Company.

Nos. on deposited Plans.	Parish.	Description of Property.
RAILWAY No. 1.		
28	Llansamlet - - - - -	Farmhouse yard.
29	Ditto - - - - -	Rickyard.
37	Ditto - - - - -	Field and sewage works.
38	Ditto - - - - -	Sewage works.
28	Rhyndwyelydach - - - - -	Garden and outbuilding.
40	Ditto - - - - -	Tramway and works.
RAILWAY No. 2.		
37	Llansamlet - - - - -	Field and sewage works.
38	Ditto - - - - -	Sewage works.
2	Rhyndwyelydach - - - - -	Land and sidings.
RAILWAY No. 3.		
40	Rhyndwyelydach - - - - -	Tramway and works.
59	Ditto - - - - -	Land and siding.

SECOND SCHEDULE.

AN AGREEMENT made the tenth day of August one thousand nine hundred and eleven between THE MIDLAND RAILWAY COMPANY of the one part and THE GREAT NORTHERN RAILWAY COMPANY of the other part.

WHEREAS by an agreement made between the parties hereto (hereinafter called "the two Companies") dated the twelfth day of May one thousand eight hundred and ninety-three and contained in the schedule to the Midland and Great Northern Railway Companies (Eastern and Midland Railway) Act 1893 provision is made for the formation of a fund entitled the eastern joint line guarantee fund for the purpose of discharging certain payments set out in Article 14 of the said agreement and for contributions to be made by the two Companies to the said fund in manner stated in Article 13 of the said agreement:

Stamp.

Ten
Shillings.

A.D. 1912.

And whereas the two Companies have agreed that the said agreement shall be amended as hereinafter appears :

Now therefore it is agreed that as from the first day of January one thousand nine hundred and nine—

- (1) Articles 1 (B) 4 5 13 14 15 and 16 of the said agreement shall be cancelled :
- (2) The guaranteed interest or dividend upon rentcharge stocks issued under the said Act of 1893 shall be contributed by the two Companies in equal shares :
- (3) The eastern working balance referred to in Article 12 of the said agreement shall be divided between or as the case may be shall be contributed by the two Companies in equal shares :
- (4) Save as herein provided the said agreement shall remain of full force and effect :
- (5) Due effect shall be given to this agreement so far as necessary by scheduling it to a Bill to be promoted by one or other or both of the two Companies in the next or some future session of Parliament.

In witness whereof the Midland Railway Company and the Great Northern Railway Company have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Midland Railway Company }
was hereunto affixed in the presence of . }

L.S.

(Sgd.) JAMES W. OXLEY
Director of the Company
Spenfield Weetwood near Leeds.

The common seal of the Great Northern Railway was }
hereunto affixed in the presence of }

L.S.

(Sgd.) L. C. PROBYN Director.

THIRD SCHEDULE.

A.D. 1912.

AN AGREEMENT made the twenty-seventh day of February one thousand nine hundred and twelve between THE MIDLAND RAILWAY COMPANY (hereinafter called "the Midland Company") of the one part and THE MIDLAND AND SOUTH WESTERN JUNCTION RAILWAY COMPANY (hereinafter called "the Junction Company") of the other part.

Stamp.

Ten
Shillings.

WHEREAS by agreements dated the 10th day of April 1899 and the 30th day of June 1902 (hereinafter called "the agreements of 1899 and 1902") made between the parties hereto and scheduled to the Midland Railway Acts 1899 and 1902 the Midland Company agreed to advance to the Junction Company for the purpose of increasing their accommodation for and the development of through traffic with their system the sum of £250,000 out of the moneys of the Midland Company available for capital purposes (of which £237,500 has already been advanced out of the Midland Company's capital moneys) on the terms mentioned in the said agreements of 1899 and 1902:

Now it is hereby agreed—

1. The provisions contained in the said agreements of 1899 and 1902 with respect to payment of interest on the sums of £200,000 and £37,500 advanced by the Midland Company to the Junction Company thereunder are hereby determined and in lieu thereof it is agreed that the said sums shall until repaid stand as a debt due by the Junction Company to the Midland Company bearing interest at the rate of three and a quarter per centum and five per centum respectively payable annually and such interest shall rank as a charge upon the net revenue of the Junction Company and the net revenue of the Junction Company after payment thereof of the interest on the "A" debenture stock of the Junction Company and all charges prior thereto shall be applied as follows:—

First In the payment of interest at the rate of £5 per centum (current and in arrear) on the sum of £12,500 advanced by the Midland Company to the Junction Company in the year 1905 under the agreement of 1902:

Secondly In the payment of interest on the "B" and/or "C" debenture stocks of the Junction Company up to the sum of £1,945 being the sum properly available in the year 1904 for that purpose:

Thirdly In the payment of interest at the rate of £5 per centum (current and in arrear) on the sum of £12,500 advanced by the Midland Company to the Junction Company in the year 1904 under the agreement of 1902:

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Fourthly In the payment of interest on the "B" and/or "C" debenture stocks of the Junction Company up to the sum of £439 (being the difference between the sum of £2,384 which was actually paid by the Junction Company as interest on the "B" debenture stock of the Junction Company in the years 1899 and 1900 and the said sum of £1,945 referred to secondly in this clause):

Fifthly In the payment of interest at the rate of $\text{£}3\frac{1}{4}$ per centum (current and in arrear) on the sum of £87,000 advanced by the Midland Company to the Junction Company in the years 1899 and 1900 under the agreement of 1899:

Sixthly In the payment of interest on the "B" and/or "C" debenture stocks of the Junction Company up to the sum of £1,192 (being the difference between the sum of £3,576 actually paid by the Junction Company as interest on the "B" debenture stock of that company in the years 1901 1902 1903 and 1904 and the said sum of £2,384 above referred to fourthly in this clause):

Seventhly In the payment of interest (current and in arrear) on the sum of £125,500 advanced by the Midland Company to the Junction Company in the years 1901 1902 1903 and 1904 as follows:—

Under the agreement of 1899 at $\text{£}3\frac{1}{4}$ per centum—

	£	s.	d.	£	s.	d.
1901 - - -	41,419	6	10			
1902 - - -	55,000	0	0			
1903 - - -	16,580	13	2			
				113,000	0	0

Under the agreement of 1902 at £5 per centum—

1903 - - -	12,500	0	0	12,500	0	0
				£125,500	0	0

2. So soon as this agreement shall have been confirmed by Parliament the Midland Company will advance to the Junction Company if and when requested by that company so to do the sum of £12,500 the balance of the loan referred to in the agreement of 1902 and such loan shall until repaid stand as a debt due by the Junction Company to the Midland Company bearing interest at the rate of 5 per centum per annum payable annually and such interest shall rank as a charge upon the net revenue of the Junction Company next after an amount equal to the sums actually paid by way of interest on the debenture or other stock and charges for the calendar year in which such advance is made.

3. Except as herein expressly varied the agreements of 1899 and 1902 shall remain of full force and effect. A.D. 1912.

4. Any question or difference arising out of this agreement shall be settled by arbitration in manner provided by the Arbitration Act 1889.

5. This agreement is made subject to such alterations as Parliament may think fit to make therein and in the event of either House of Parliament making any material alteration therein it shall be in the option of either of the parties hereto to withdraw from the same by notice in writing to that effect and thereupon this agreement shall become void.

In witness whereof the Midland Company and the Junction Company have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Midland Railway Company was }
hereunto affixed in the presence of

JAMES W. OXLEY

Director of the Company

Spenneth Weetwood near Leeds.

L.S.

The common seal of the Midland and South Western }
Junction Railway Company was affixed hereto in the
presence of

S. H. WEBBER Secretary.

L.S.

FOURTH SCHEDULE.

ADELPHI HOTEL LIVERPOOL.

HEADS OF AGREEMENT between THE LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF LIVERPOOL (hereinafter called "the corporation") and THE MIDLAND RAILWAY COMPANY (hereinafter called "the Company") as to the proposed extension and rebuilding of the hotel.

Stamp.

Ten
Shillings.

1. The Company to convey to the corporation the freehold of the land situate on the north side of Brownlow Hill south-east side of Copperas Hill north-east and south-east side of Tobin Street and north and south sides of Warren Street and also on the south-west side of Hawke Street and comprising Saint David's Church Nos. 6 8 10 12 14 and 16 Copperas Hill Nos. 6 7 19 and 21 Tobin Street six dwelling-houses in No. 1 Court Tobin Street and No. 26 Hawke Street coloured pink on the plan hereto annexed.

A.D. 1912. 2. The Company to surrender to the corporation the following leases:—

Property.	Lessees.	Commencement of Term.
"Adelphi Hotel" Ranelagh Place.	Liverpool Adelphi Hotel Company Limited.	7th April 1888.
18 to 24 Copperas Hill 1 and 3 Warren Street and 1 to 11 St. David's Place.	James Holme - - -	7th March 1866.
26 to 30 Copperas Hill and 6 to 12 Hawke Street.	Charles Cottrell and another	2nd November 1901.
3 to 9 Brownlow Hill -	Thomas George Jones -	5th April 1902.
11 Brownlow Hill - -	Robert Myles - - -	2nd January 1897.
14 Hawke Street - -	Reverend James Abraham	4th July 1862.
16 Hawke Street - -	John Pugmire - - -	30th September 1867.
18 Hawke Street - -	John Addison - - -	7th September 1844.
5 and 7 Warren Street -	Henry Rook - - -	9th December 1867.
6 and 10 Warren Street -	William Bennett - -	24th May 1875.
20 Hawke Street - -	Thomas Thompson - -	31st March 1868.
22 Hawke Street - -	Crewe and Harding - -	2nd October 1857.
24 Hawke Street - -	H. L. Edwards - - -	30th September 1867.
28 and 30 Hawke Street -	Henry Rook - - -	19th October 1867.
32 Hawke Street - -	W. J. Roberts - - -	5th May 1843.

3. The corporation who at the request of the Company have taken all the necessary steps to stop up Tobin Street and so much of Warren Street as lies to the south-west side of Hawke Street to grant to the Company a lease for nine hundred and ninety-nine years of the property shown within the red verge on the plan hereto annexed and bounded by the improved lines of Ranelagh Place Brownlow Hill Hawke Street and Copperas Hill.

4. The Company to pay to the corporation in respect of the new lease for nine hundred and ninety-nine years a rent of three hundred pounds per annum for the first five years of the term and a rent of three hundred and fifty pounds per annum thereafter such rent to commence from the first day of March one thousand nine hundred and eleven and the Company to have the right to buy up the rent at any time on payment of the sum of ten thousand pounds.

5 The land outside the red verge on the said plan to be added to the street as the property is pulled down and rebuilt.

6. The corporation to collect rates from the tenants of the various properties so long as they are occupied and not to claim from the Company the full rates during the construction as is usual in the case of railway companies carrying out works When the works are completed the premises to be subject to the usual conditions of assessment and rating.

7. The corporation to give to the Company the best possible terms for electrical power supplied to the Company for user in the hotel having regard to the cost of manufacture and a small percentage for

profit and the Company to have power to erect and work in the hotel such electrical or other plant for hotel purposes which shall not disturb the amenities of the hotel or neighbourhood. A.D. 1912.

8. The lease to contain (inter alia) the following provisions:—

- (A) A reservation to the corporation their successors assigns and lessees and others deriving title under the corporation of the right at any time to build or alter any building on any land in the neighbourhood of the land demised or on the opposite sides of the streets notwithstanding such building or alteration may interfere with the access of light or air or other easement belonging to or enjoyed with the demised land or any buildings thereon. Provided that the height of any such building to be so erected or altered by the corporation their successors assigns and lessees and others deriving title under the corporation shall not exceed at any one point the mesne height of the hotel building contemplated by these heads of agreement;
- (B) A reservation to the corporation twice a year at reasonable times to enter upon the demised premises to inspect the condition thereof;
- (C) A proviso that the lease shall not operate to grant by way of implication or otherwise any right or easement not expressly mentioned in the lease or not thereafter by resolution of the council expressly given over or in respect of any land retained by or belonging to the corporation whether now in lease or not or over any land to be thereafter acquired by the corporation;
- (D) A proviso for re-entry by the corporation in case of non-payment of rent or the breach non-performance or non-observance by the lessees of any covenant or condition contained in the lease covenants by the lessees until the rent is bought up under the provisions of clause 4 hereof;
- (E) For payment of the rent reserved;
- (F) Not to alter the structure of the buildings for the time being standing on the land or the height elevation or walls thereof or make any additions thereto or put out any windows therein without the consent of the corporation being first obtained and then only according to plans elevations and sections to be previously approved of by them;
- (G) To keep the buildings for the time being standing on the land in proper repair and so to leave the same on the determination of the lease;

A.D. 1912.

- (H) Not to carry on any offensive trade;
- (I) Not to erect or permit an engine or other mechanical motive power or noisy machinery to be erected or used on the premises without the consent of the corporation except such electrical or other plant as is hereinbefore referred to;
- (J) And will not otherwise than by the erection of buildings approved by the corporation darken or obstruct the access of light to any windows lights or openings in any buildings of the corporation their lessees or tenants nor permit any drain or passage to be made from other premises in or through the demised premises:

Covenant by the corporation :—

- (K) For quiet enjoyment of the premises by the lessees.

9. This agreement is made subject to such alterations as Parliament may think fit to make therein and in the event of either House of Parliament making any material alteration therein it shall be in the option of either of the parties hereto to withdraw from the same by notice in writing to that effect and thereupon this agreement shall become void.

Dated the third day of January one thousand nine hundred and twelve.

The common seal of the Midland Railway Company }
was hereunto affixed in the presence of

L.S.

BELPER Director of the Company
Kingston Hall
Near Derby.

DERBY Lord Mayor.

L.S.

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